



NATO SUPPORT AND PROCUREMENT AGENCY

AGENCE OTAN DE SOUTIEN ET D'ACQUISITION

PROVISIONS FOR SMALL VALUE PURCHASE ORDERS - SOFTWARE LICENCES

REVISION-1 DATED 23 MARCH 2026¹

ONLY TO BE USED FOR REQUIREMENTS <€40K

AUTHOR TO COMPLETE / DELETE ALL SECTIONS HIGHLIGHTED

This Contract ("Contract") is entered into by and between the NATO Support and Procurement Agency ("NSPA") and the contractor named in the Purchase Order(s) ("Contractor").

NSPA and the Contractor shall hereinafter be collectively referred to as "Parties" and individually as "Party".

These General Provisions set forth the terms and conditions governing any Purchase Order(s) (PO(s)) issued by NSPA to the Contractor. Together, these General Provisions and the PO(s) constitute the Contract between the Parties.

1. Formation and Acceptance

1.1. NSPA shall issue PO(s) specifying the deliverables, price, delivery terms, and any other particular conditions applicable to a given purchase. The PO may be issued in any form, including but not limited to a written purchase order, electronic order, or other electronic communication.

1.2. The Contract is formed upon acceptance of the PO by the Contractor. Acceptance may occur by:

- (a) Written confirmation, including by electronic means, within ten (10) calendar days of receipt of the PO; or
- (b) Commencement of performance of the Contractor's obligations under the PO.

1.3. Any acceptance that purports to vary or add to the terms of the PO or these General Provisions shall be deemed a counter-offer and shall not be binding on NSPA unless expressly accepted in writing by an authorized representative of NSPA.

¹ This revision may not be the latest revision. Always check the DMS templates for the latest revision.

1.4. The Contractor's own general terms and conditions of sale, howsoever communicated, shall not apply and are expressly excluded.

2. Duration

2.1. The Contract shall enter into force on the date of acceptance of the PO by the Contractor in accordance with Article 1 and shall remain in force until the complete fulfilment by both Parties of all their respective obligations thereunder, unless terminated earlier.

2.2. Where the PO specifies a period of performance and/or a delivery date, the Contractor shall complete delivery of all deliverables within that period. Where no period of performance is specified, the Contractor shall deliver the Software within thirty (30) calendar days of the entry into force of the Contract.

2.3. The expiration or the termination of the Contract shall not release either Party from any obligation that, by its nature or by express provision, is intended to survive, including in particular the provisions referred to in Articles 11 and 13.

3. Purpose

3.1. The Contractor shall provide the Software described in the Purchase Order (PO), including its List of Services and delivery terms.

3.2. The Contractor acknowledges and agrees that NSPA may transfer, assign, or otherwise convey the Software licenses acquired under this Contract to NSPA's customer, without requiring any additional consent from the Contractor. Upon such transfer, the Contractor shall, at no additional cost, take all reasonable actions necessary to enable NSPA's customer to use the Software and exercise the rights granted under the transferred licenses. The Contractor shall ensure that no contractual, technical, or licensing restrictions prevent or limit such transfer.

4. Price

4.1. The Contract price is as stated in the PO. Prices are firm, fixed, and not subject to revision.

5. Invoice (s) and Payment

5.1. Unless the Purchase is paid with a credit card online before delivery, the Contractor shall send by e-mail, after all Contract/PO-related Software has been made available to NSPA, one invoice per PO as a (.pdf) document to:

cimo@nspa.nato.int

(Only invoices and credit notes are treated under this email address.)

5.2. Any other issue is to be addressed to the Buyer/Procurement Officer named in the PO.

5.3. Invoice(s) shall contain at least the PO number(s), bank account information, country of development of the Software, delivery from country and delivery address(es), description of the deliverables, quantity, individual prices, total price, VAT breakdown (if applicable), payment term, official names and tax identification number of the Party.

5.4. Unless otherwise stated in the PO, payment will be made within thirty (30) days following receipt by NSPA of the Contractor's invoice drawn for payment in the currency in which the Contract is established.

5.5. NSPA will pay the net invoice amount and will cover the charges of its bank. The Contractor is responsible for all other bank charges, including any intermediary bank fees.

5.6. Payment under the terms of this Contract shall be made by Electronic Funds Transfer (EFT) into the bank account specified in the Contractor invoice.

5.7. In any case, the bank account shall be held in a bank located in the country of incorporation of the Contractor or, in exceptional cases subject to NSPA's approval, in a bank located in a NATO member country other than the one of incorporation of the Contractor.

6. Delivery Terms

6.1. Delivery terms, including the applicable delivery dates, and requirements, shall be as defined in the PO(s).

7. Warranty

7.1. The Contractor warrants that the Software delivered under this Contract will operate in substantial conformity with the applicable specifications and documentation. The Contractor further warrants that the Software, as delivered, will be free from material defects that prevent its intended operation. The Software is guaranteed for a period of **one (1) year** starting from the date of activation of the license(s) for the Software.

7.2. The Contractor shall, at no additional cost to NSPA, correct any material defects, errors, or non-conformities in the Software, and provide any necessary patches, fixes, or updates needed to restore the Software to the warranted condition.

7.3. The Contractor does not warrant that the Software will be entirely error-free; however, the Contractor shall use commercially reasonable efforts to remedy any defects reported by NSPA or its customer during the warranty period.

7.4. The Contractor expressly authorizes that NSPA may offer the whole or part of these warranty conditions to third parties with the intent that such third parties and the

Contractor shall be bound thereby as if both were parties to a contract made between them in which this warranty were expressly set forth.

8. Intellectual Property Rights

8.1. No Intellectual Property ownership is transferred with this Contract. The Contractor guarantees that it is in possession of all the necessary intellectual property rights as may be applicable to the deliverables under this Contract. The Contractor shall, at its own expense, hold NSPA and its customer(s) harmless and fully indemnify NSPA and its customer(s) against all damages, costs, charges, expenses and the like arising from or incurred by any reason of any infringement or alleged infringement of intellectual property rights in consequence of Contractor's provision of the deliverables under this Contract.

8.2. The Contractor warrants that no payments of royalties or fees for intellectual property rights will be claimed by any third party for the deliverables provided under this Contract. In the event that such fees are claimed, the Contractor will bear any and all responsibility.

9. Taxes and Duties

9.1. As a subsidiary body of NATO, NSPA is exempt from indirect taxes in relation to important purchases made for the official use of NATO pursuant to the Ottawa Agreement. Where NSPA invokes its fiscal privileges by seeking an exemption from Value Added Tax (VAT) under the Ottawa Agreement, it will provide the Contractor with an official exemption certificate.

9.2. Where the purchase is not exempt from VAT under the Ottawa Agreement, the Contractor will use, whenever possible, the NSPA VAT number to issue an invoice exclusive of VAT in accordance with the reverse charge mechanism or intra-community triangular regime. The VAT number of NSPA is LU 15413172.

9.3. In cases where the purchase is not exempt from VAT under the Ottawa Agreement and where the VAT number of NSPA cannot be used to issue an invoice exclusive of VAT in accordance with either reverse charge mechanism [auto-liquidation] or intra-community triangular regime, the Contractor will specify in its proposal whether it will charge VAT in its invoice. If the Contractor did not specify in its proposal that the invoice will contain VAT or other indirect taxes, the Contractor cannot subsequently charge VAT or other taxes and duties unless agreed by NSPA.

9.4. If due to changes in this Contract or in legislation implemented after the effective date of this Contract, the Contractor is compelled to pay any readily identifiable tax or duty in relation to this Contract, it will indicate such tax or duty as a separate item of cost on its invoice(s). Where applicable, the Contractor will provide the text of the legislative amendment(s) pursuant to which such tax or duty becomes payable along with the content of any transitional provisions.

10. Supplier Code of Conduct

10.1. The Contractor, including its employees, parent, subsidiary, and affiliated entities as well as any sub-contractors shall adhere to the minimum standards set forth in the NSPA Supplier Code of Conduct published on NSPA's Internet website.

10.2. If NSPA establishes that any of the provisions of the NSPA Supplier Code of Conduct have not been complied with by the Contractor, including its employees, parent, subsidiary, and affiliated entities as well as any sub-contractors, NSPA may terminate this Contract at no cost to NSPA and the Contractor may be debarred from doing any further business with NSPA. NSPA may also inform the relevant national law enforcement and/or judicial authorities.

11. Confidentiality

11.1. Each Party shall treat as confidential all non-public information received from the other Party in connection with this Contract and shall not disclose or use such information for any purpose other than the performance of this Contract, unless required by law or authorized in writing by the disclosing Party.

12. Applicable Law

12.1. This Contract shall be governed, interpreted and construed in accordance with French law and such law shall govern in the event of arbitration.

13. Dispute Resolution

13.1. Any dispute, controversy or claim arising out of or relating to this Contract, or the validity, interpretation, breach, termination thereof, which are not settled amicably shall be settled by arbitration in accordance with the PCA Arbitration Rules 2012, subject to the following paragraphs.

13.2. The number of arbitrators shall be three (3). Each arbitrator shall be of the nationality of a NATO Member State. The third arbitrator will be of a nationality different from the nationality of the other two arbitrators.

13.3. Conduct of the arbitral proceedings and the provision of evidence is subject to the rules of security in force within NATO, where applicable. Although each Party has the liberty of choosing their legal representatives and expert witnesses, the Parties acknowledge that the rules of security within NATO may prohibit the communication of NATO information, including classified information, in particular to individuals who do not hold the nationality of a NATO Member State.

13.4. The arbitration proceedings shall be conducted in English or French. Any document submitted by the Parties in a language other than the language of the arbitration

proceedings shall be accompanied by a translation into the language of the arbitration proceedings.

13.5. The arbitration proceedings and award, but not the existence of the arbitration, shall be private and confidential, except with the consent of the Parties, or to the extent that disclosure is required of a Party: by legal duty (including where that duty arises from NATO's internal legal order); to protect or pursue a legal right; or in relation to legal proceedings before a court or other competent authority.

13.6. The place of arbitration (seat) shall be Paris, France. For deliberations, the arbitrators may meet at any place of their choice, provided that it is within the territory of a NATO Member State. The hearings shall take place in Paris, France.

13.7. Nothing in this provision, or the Contract, shall be interpreted as a waiver of any privileges or immunities accorded to any Party hereto with respect to any procedure before the court or tribunal of any State, including any court or tribunal of the place of arbitration, including but not limited to any procedure that relates to the validity, interpretation or application of the arbitration agreement, requests for interim relief, requests of measures concerning the arbitration procedure, or applications for the recognition or the enforcement of an award or to any measure of execution or detention of property.

14. Entire Agreement

14.1. These provisions and the Purchase Order form the entire agreement between the Parties and replaces and supersedes all prior verbal or written agreements between the Parties with respect to the subject matter hereof. Any changes to this Contract must be made in writing and signed by the Parties.